

Multiple Choice (10 marks)

1. Which statement best describes one of Dworkin's central arguments in *Justice for Hedgehogs*?
 - (a) The law is the only guide for ethical behaviour.
 - (b) The law dictates what moral values should affect our ethical behaviour.
 - (c) Morality plays no role in the concept of law.
 - (d) Moral arguments operate only in hard cases.
 - (e) Morality only applies to specific, complex cases.
2. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) *Dudgeon v UK* (1981)
 - (b) *Marckx v Belgium* (1979)
 - (c) *Osman v UK* (1998)
 - (d) *Tyrer v UK* (1978)
 - (e) *McCann v UK* (1995)
3. Do treaties bind third States, ie non-State parties?
 - (a) Treaties do not create obligations or rights for third States without their consent
 - (b) Treaties create both obligations and rights for third States
 - (c) Treaties do not create any rights for third States, even when the latter consent.
 - (d) Treaties may create only obligations for third States
 - (e) Treaties create obligations for third States without their consent
4. What is it called when a remainder in the grantor's heirs is invalid and becomes a reversion in the grantor?
 - (a) Related Doctrine of Merger
 - (b) Contingent remainder
 - (c) Doctrine of Worthier Title
 - (d) Doctrine of Escheat
 - (e) Vested remainder
5. Maine's famous aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misunderstood. In what way?

- (a) His concept of status is misrepresented.
- (b) It is misinterpreted as a prediction.
- (c) His idea is considered inapplicable to Western legal systems.
- (d) It is incorrectly related to economic progression.
- (e) It is taken literally.

True / False (10 marks)

Answer True or False

- 6. True or False: A warranty of merchantability ensures that goods are fit for ordinary use, regardless of the buyer's specific goals.
- 7. True or False: The original position (POP) would choose equality over wealth in its selection of social primary goods.
- 8. True or False: Passive personality jurisdiction is based on the nationality of the victims involved in the offense.
- 9. True or False: Blackstone asserted that law is a set of principles or rules recognized and applied by the State in administering justice.
- 10. True or False: Solicitation requires a formal agreement between two or more individuals to commit a crime.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the strengths of cognitivism as an argument against ethical relativism's opposition to human rights, providing a detailed analysis of its implications in constitutional law.
- 12. Discuss the legal implications of bid retraction in the context of auctions, particularly focusing on the rights of bidders and the impact on the auction process.

End of Paper